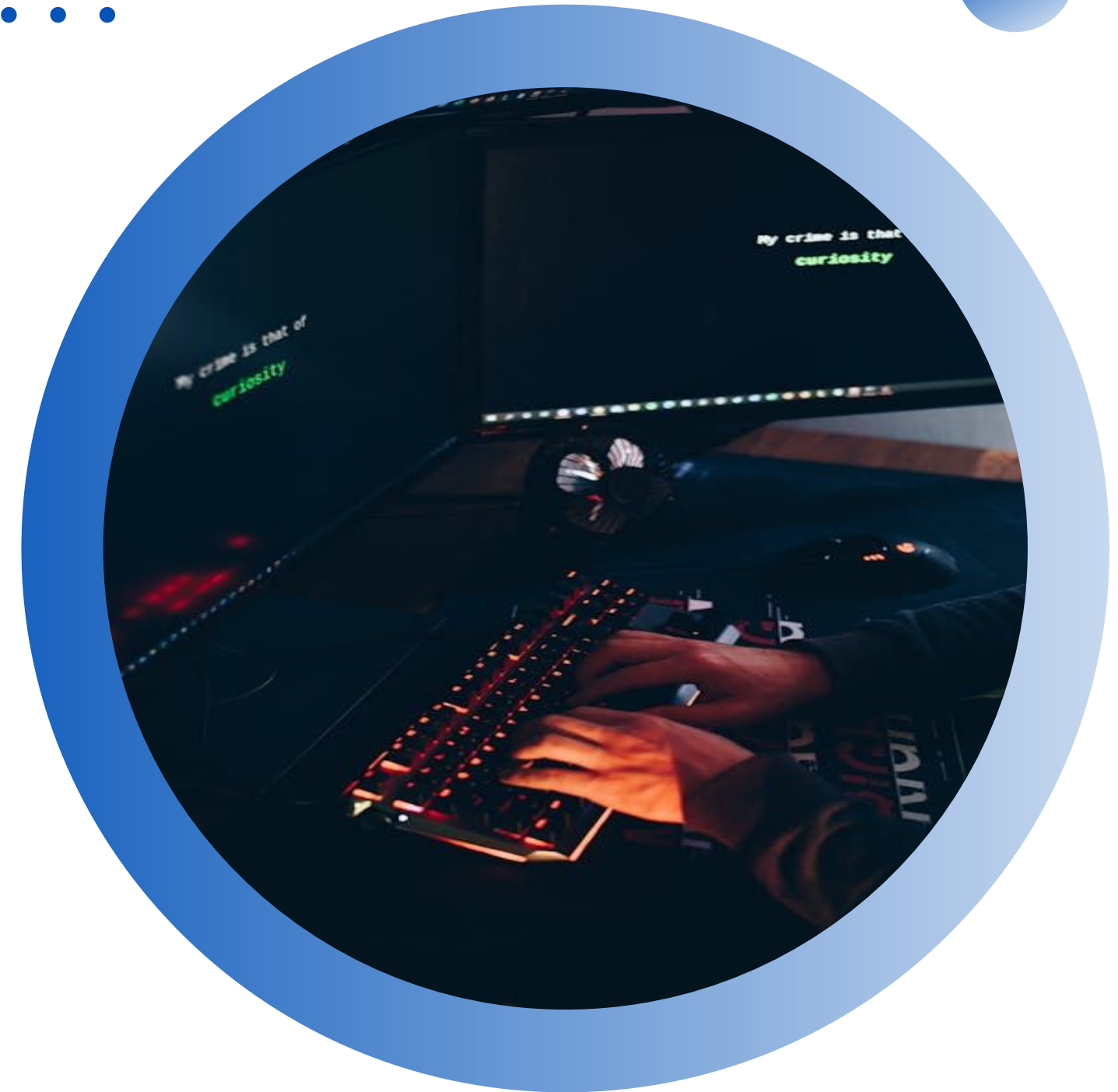
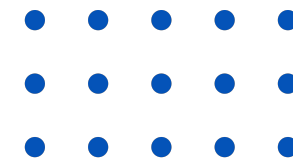




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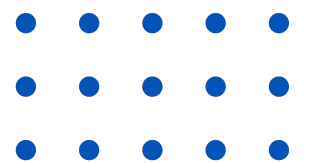
Legal Issues in IT (Part 2: Cybercrime Law)

College of Computer Studies

Week No.: 5

Date of Presentation: September 30, 2025

ITEP 310 – Social and Professional Issues in Information Technology



Group Members

3A – Cybercrime Law



Jay Michael Castillo



Lawrence Salvador



Jhester Carlo Cayetano



Kent Montecillo



Adrial Timothy Fernandez



Jeric Manibog

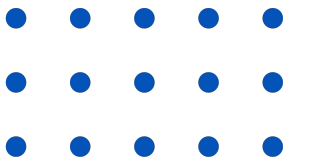


Ray Flores



Richard Catindig

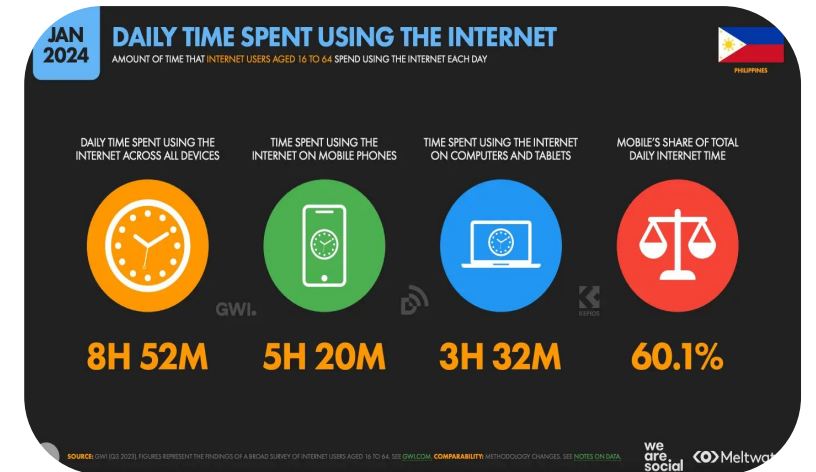
Discussion Road Map



- **What is Cybercrime?**
- **Cybercrime Prevention Act of 2012 (Republic Act No. 10175)**
- **Cyber Offenses Covered under RA 10175**
- **Enforcement and Implementation in the Philippines**
- **International Treaties and the Budapest Convention**
- **Sustainable Development Goal 3: Good Health and Well-Being**
- **Philippine Development Plan Alignment: Safe & Secure Digital Economy; Rule of Law in Cyberspace**

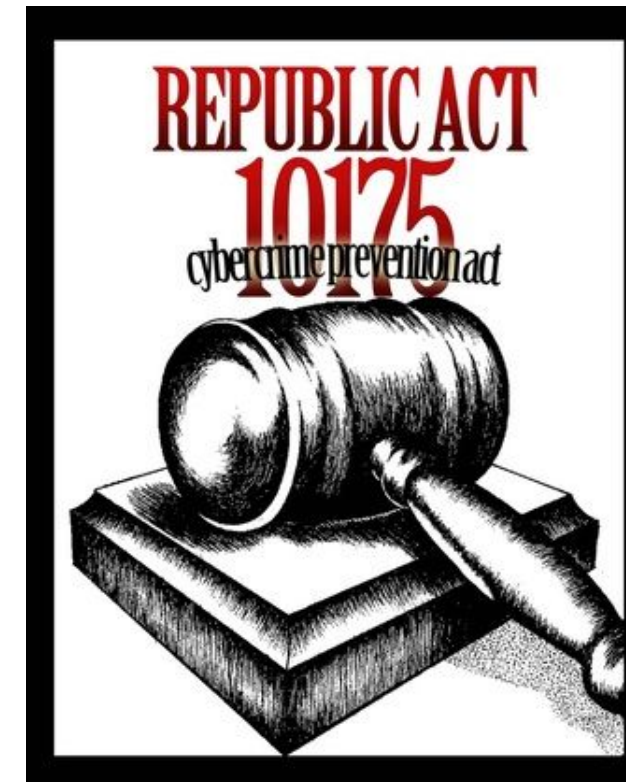
DID YOU KNOW?

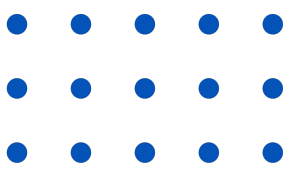
- In the Philippines, there were **19,472** cybercrime cases in 2023 — that's about **53 cases per day**. (Source: *Philstar / PNP*)
- nearly **1 billion emails** were exposed in a single year, affecting **1 in 5 internet users**. (Source: *AAG IT Support, 2021 Cybercrime Statistics*)
- Filipinos spend an average of **8 hours and 52 minutes online every day**—one of the highest in the world. (Source: *Interaksyon / Digital 2025 Report*)



Cybercrime / The Cybercrime Prevention Act of 2012 (RA 10175)

- **Cybercrime** - Unlawful acts using computers, networks, or the internet
- **The Cybercrime Prevention Act of 2012 (RA 10175)** is a landmark Philippine law that addresses crimes using information and communication technologies (ICT). It defines cyber offenses, sets penalties, and establishes procedures for investigation, prosecution, and enforcement to effectively combat cybercrime threats.

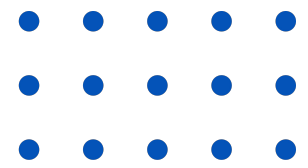




Cyber Offenses Covered under RA 10175

1. Offenses Against the Confidentiality, Integrity, and Availability of Computer Data and Systems

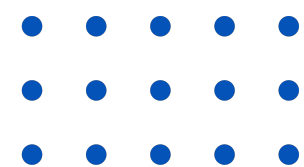
Offense	Definition	CIA Principle Violated	Example
Hacking (Illegal Access)	Unauthorized access to computer systems.	Confidentiality	Gaining access to a private email account without permission.
Illegal Interception	Monitoring or recording non-public data transmissions without authority.	Confidentiality	Wiretapping emails or intercepting online chats.
Data Interference	Damaging, deleting, altering, or introducing malware/viruses into data.	Integrity	Installing ransomware to encrypt and corrupt data.
System Interference (Disruption)	Disrupting the normal function of a computer system or network.	Availability	Launching a DDoS attack to take down a website.
Misuse of Devices	Possessing or distributing tools used to commit cybercrimes.	Confidentiality/Integrity/Availability	Selling hacking tools or stolen credentials.
Cybersquatting	Registering domain names in bad faith for profit or harm.	Integrity / Trust / Reputation	Buying a domain similar to a brand to scam users or demand payment.



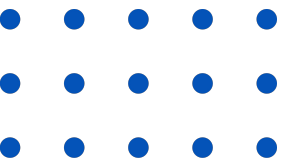
Cyber Offenses Covered under RA 10175

2. Computer-Related Offenses

- **Computer-Related Forgery** - Creating or using falsified electronic documents.
- **Computer-Related Fraud** - Manipulating data or programs to gain unlawful profit.
- **Computer-Related Identity Theft** - Unauthorized use of another person's personal data.

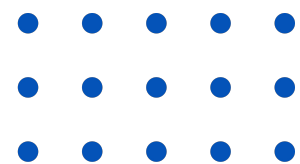


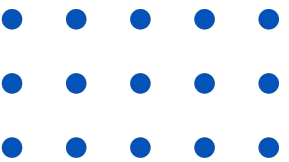
Cyber Offenses Covered under RA 10175



3. Content-Related Offenses

- **Cybersex** - Exploiting computer systems to facilitate sexual acts for profit.
- **Child Pornography** - Producing, distributing, or accessing explicit materials involving minors.
- **Online Libel** - Publishing defamatory statements online.
- **Unsolicited Commercial Communications (Spamming)** - Sending bulk commercial messages without consent.





Enforcement and Implementation in the Philippines

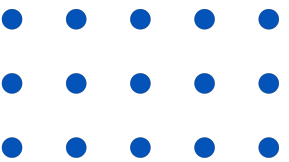
To ensure effective enforcement of RA 10175, the law designates the **National Bureau of Investigation (NBI)** and the **Philippine National Police (PNP)** to establish specialized cyber crime units



NBI – Cybercrime Division - Investigates online crimes such as fraud, identity theft, hacking, and online libel; conducts forensic analysis; coordinates with international agencies.



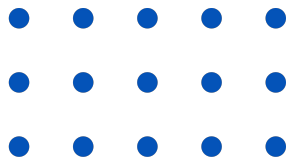
PNP – Anti-Cybercrime Group (ACG) - Monitors online crimes nationwide; investigates citizen complaints; coordinates with local and international law enforcement; responds to cyber incidents.



Enforcement and Implementation in the Philippines

Enforcement Provisions

Provision	Description	Responsible Entity	Notes/Legal Basis
Real-Time Data Collection	Collection of traffic data during ongoing cybercrime investigations, with proper judicial or authorized approval.	NBI, PNP	Requires authorization to ensure legality.
Data Preservation	Internet Service Providers (ISPs) must retain traffic and subscriber data for a minimum of six (6) months.	ISPs, monitored by DOJ and law enforcement	Ensures that evidence is available for investigation and prosecution.
Disclosure of Computer Data	Courts may order service providers to disclose computer data relevant to investigations or prosecution.	Courts, ISPs	Must comply with judicial orders; unauthorized disclosure is prohibited.
Search, Seizure, and Examination	Law enforcement may obtain warrants to access and examine digital evidence.	NBI, PNP	Evidence collection must follow due process and legal authority.
Custody and Destruction of Data	Collected digital evidence must be sealed, documented, and destroyed after due process.	NBI, PNP	Maintains chain of custody and ensures privacy compliance.
Blocking Access to Illegal Content	The Department of Justice (DOJ) may order the restriction of access to websites or online content deemed illegal.	DOJ, ISPs	Applied to content violating RA 10175, e.g., child pornography, online libel.
Penalties for Noncompliance	Service providers who ignore lawful orders may face fines or imprisonment.	DOJ, Courts	Acts as a deterrent to ensure compliance with enforcement procedures.
Exclusionary Rule	Evidence obtained without proper legal authority is inadmissible in court.	Courts	Protects due process and ensures only legally obtained evidence is considered.



Enforcement and Implementation in the Philippines

Public Role & Why Enforcement Matters

Citizen Role: reporting scams, harassment, suspicious activity.

Awareness Campaigns (CyberSafePH): promoting safe digital habits.

Overall

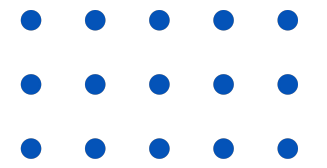
Impact:

- Protects rights & privacy online.
- Builds trust in online banking, e-commerce, and government services.
- Keeps children and vulnerable users safe from exploitation.

Why it Matters: With high internet use in PH, strong enforcement = safety, trust, and digital growth.



International Treaties and the Budapest Convention



What is a treaty?

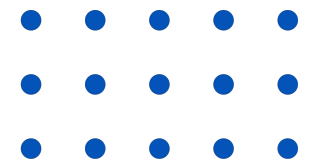
- A written agreement between countries under international law.
- Coordinates laws/procedures for cross-border issues (trade, human rights, crime).

Relevance to cybercrime

- Internet crimes cross borders (suspects, servers, evidence).
- Treaties provide **common rules** so cases can be investigated & prosecuted internationally.



International Treaties and the Budapest Convention



Budapest Convention (2001): First international treaty on cybercrime.

First major international treaty on cybercrime.

Two main aims:

1. **Harmonize laws** → Defines common cyber offenses (e.g., hacking, fraud, interference).
2. **Procedural tools** → Cooperation in evidence-gathering & cross-border investigations.

Combines **Substantive Law** (what is illegal) + **Procedural Law** (how to investigate).



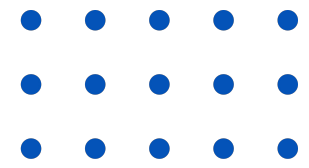
International Treaties and the Budapest Convention

How it Strengthens Cooperation

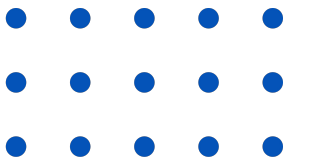
- **Mutual Legal Assistance (MLA):** formal evidence requests abroad
- **Expedited Preservation:** urgent “freeze” of data
- **Information Sharing:** threat data & technical exchange
- **Joint Investigations:** cross-country cooperation
- **Capacity Building:** training, forensic tools, resource sharing

Philippines under Budapest Convention

- RA 10175 aligns law with Convention
- Cooperates with MLA, INTERPOL, ASEANPOL, EU
- Issues expedited data requests abroad
- Gains training & partnerships via global programs
- ASEAN cooperation strengthens defense



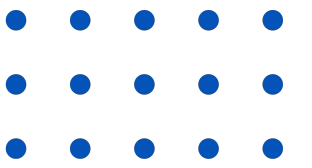
Conclusion



Key Takeaways for Students & IT Professionals

- **Know the Legal Framework:** Understanding RA 10175 & Budapest Convention is vital.
- **Recognize Categories of Offenses:** CIA attacks, computer-related crimes, content-related crimes.
- **Support Enforcement & Cooperation:** Role of NBI, PNP, and global treaties is crucial.
- **Shared Responsibility:** Ethical and responsible use of technology is key to secure cyberspace.
- **Future Role:** IT professionals must combine **technical skills + legal awareness + ethics**.

Sustainable Development Goal 3: Good Health and Well-Being

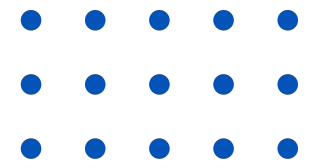


focuses on ensuring healthy lives and promoting well-being for people of all ages.

Key Objectives:

- **Maternal & Infant Health** - reduce maternal mortality.
- **Combat Communicable & Non-Communicable Diseases** - Focuses on eradicating epidemics and addresses the rising health cases.
- **Universal Health Coverage & Mental Health** - Ensures that people can access **essential health services**.
- **Mental Health and Well-being** - Recognizing Mental health as an equal.
- **Strengthen Health Systems** - Strengthens the ability of countries to respond

Global Statistics:



Life Expectancy:

- Rose from **66 years (2000)** to **73 years (2019)**; gaps remain (**80+ in high-income** vs. **<60 in low-income regions**).

Maternal Mortality:

- Dropped by **34% (2000–2020)**, but still **287,000 deaths** in reported in 2020.

Child Mortality:

- **Under-5 deaths** fell from **9.9M (2000)** to **5M (2021)**; still high due to **malaria, pneumonia, diarrhea**.

Non-Communicable Diseases (NCDs):

- **74% of deaths (41M annually)**, linked to lifestyle factors, affecting all income levels.

Vaccination Coverage:

- Saves millions, but coverage gaps (**90%+ in wealthy nations** vs. **50% below in some low-income countries**) leaving the children at risk.



Local Statistics: Philippines

Life Expectancy:

- **71 years (68 men, 74 women)**; lower than neighbors **Japan (84) & Singapore (83)**.

Leading Causes of Death (2022):

- **Heart disease, cancer, stroke** — NCDs surpass infectious diseases.

Maternal Mortality:

- **120 per 100,000 births, above global target of 70**; linked to unsafe deliveries, limited emergency/rural care.

Child Health & Nutrition:

- 1 in 3 children stunted; under-5 mortality improved (**42 in 1990 → 26 in 2020**).

COVID-19 Impact:

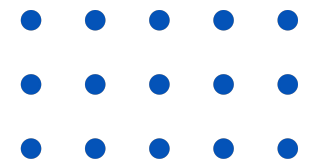
- **4M cases, 66K deaths**; exposed weak health infrastructure & preparedness.

Healthcare Access:

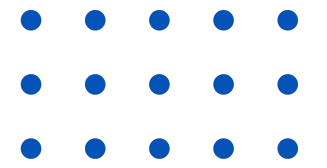
- **PhilHealth** exists, but out-of-pocket costs still burden families.

Mental Health:

- Rising **depression, anxiety, suicide**; limited professionals, concentrated in cities.



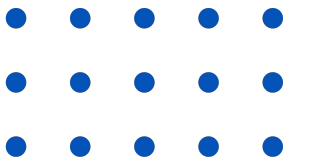
Relevance to IT (SDG 3: Good Health and Well-Being)



- **Telemedicine:** Online video calls & health apps help remote/rural patients consult doctors.
 - In the Philippines: Medgate & government e-Health programs enable consultations via smartphones, laptops, or community health centers.
 - Useful during disasters (typhoons, floods, isolation).
- **AI in Diagnostics:** Assists in early disease detection (e.g., TB, lung diseases).
 - AI scans X-rays, flags possible infections quickly.
 - Supports rural clinics lacking radiologists; improves treatment outcomes
- **Wearables:** Smartwatches & fitness trackers monitor heart rate, sleep, and activity.
 - Popular in cities & corporate wellness programs.
 - Encourage healthier habits, preventing lifestyle diseases.
- **Impact in the Philippines:** Helps reduce risks of diabetes & hypertension, both growing national concerns.

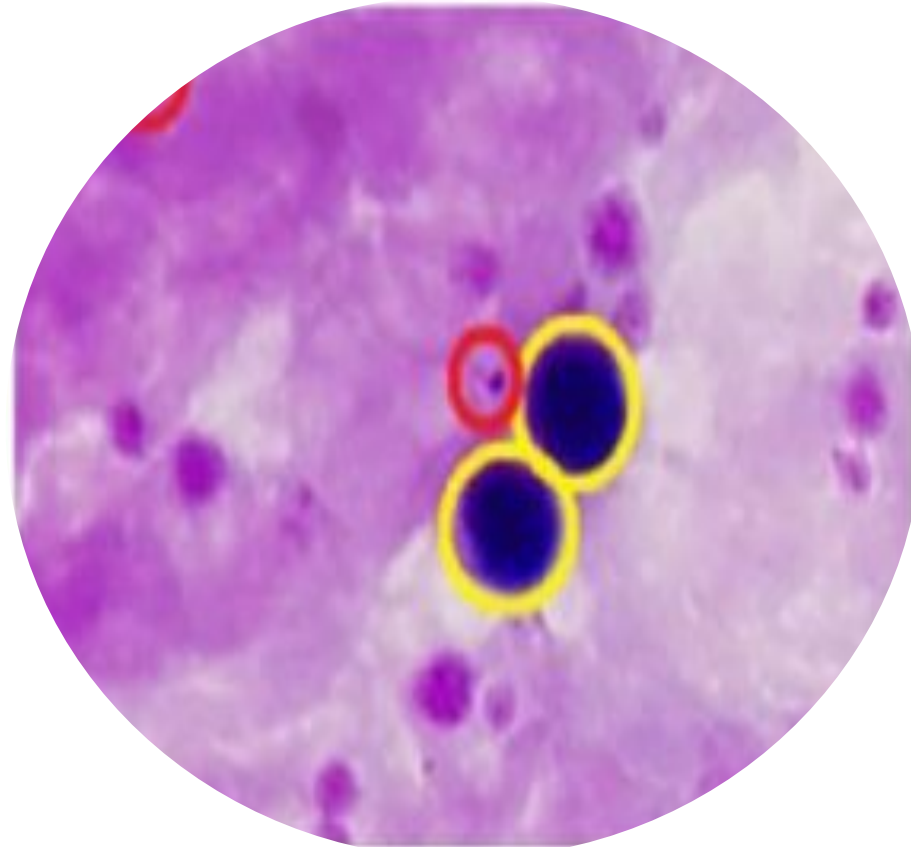


Example / Case Study



AI-Based Malaria Diagnosis (AIDMAN)

(Smartphone Blood Smear Images)



- **Purpose & Problem Solved**

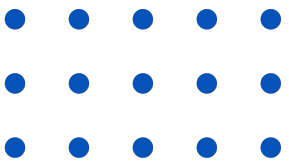
- AI (object detection + classification) analyzes blood smears via smartphone + microscope
- Addresses shortage of skilled microscopists in rural areas

- **Key Achievements**

- 98.44% accuracy (comparable to experts)
- Faster than manual analysis
- Affordable, scalable, works with basic equipment
- Useful in remote clinics & outbreak response

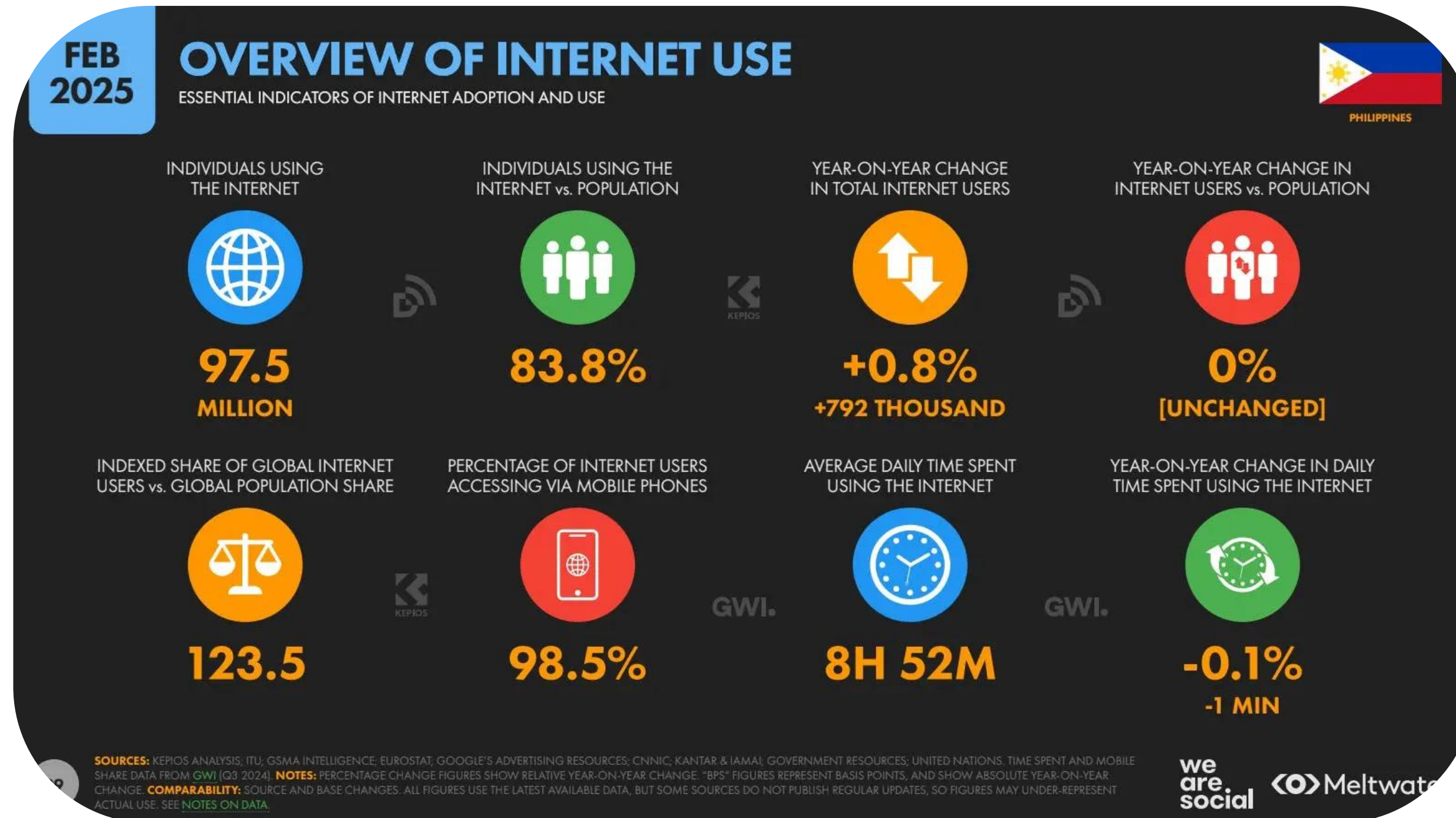
- **Relevance in the Philippines**

- **Malaria still present in Palawan, Mindoro, Mindanao**
- **Helps barangay health workers with limited lab facilities**
- **Lowers cost & time → faster outbreak response**
- **Supports equitable access & strengthens health systems**



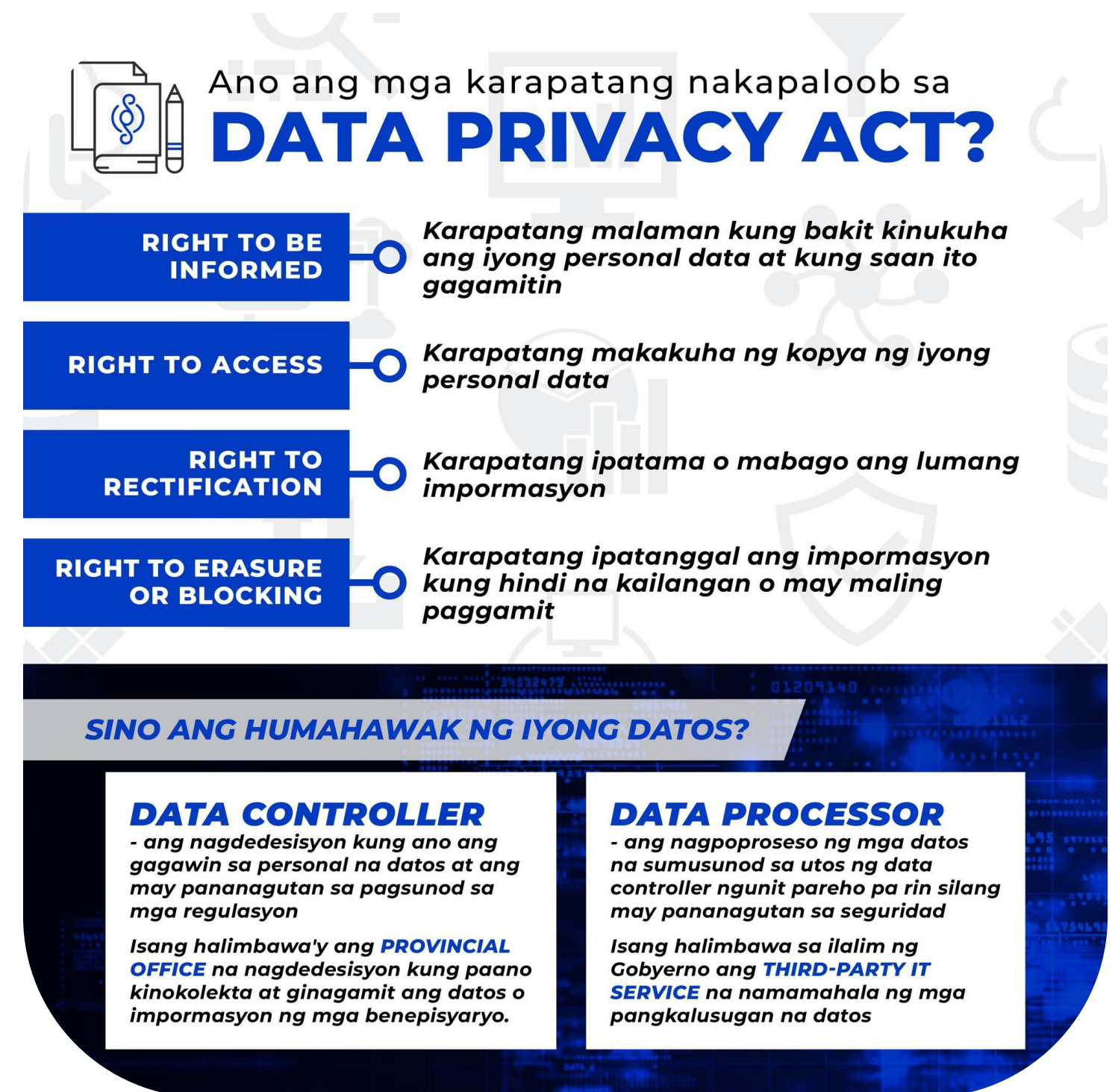
PDP Alignment: Safe and Secure Digital Economy; Rule of Law in Cyberspace

This will highlight the sustainable growth in the digital economy and that it does not require just internet access but also strong laws to protect rights, data and security in the cyberspace.



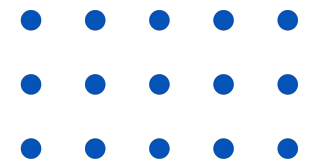
Key Objectives

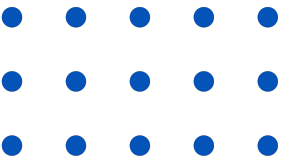
- **Cybersecurity and Digital Trust** – Safe online use needs strong tech and policies.
- **Rule of Law in Cyberspace** – Strong laws keep cyberspace fair and secure.
- **Data Privacy and Protection** – Protecting personal data is essential online.
- **Digital Inclusion and Awareness** – Access and literacy empower all Filipinos digitally.



Strategies/Programs

- **National Cybersecurity Plan 2022 (NCSP 2022)** - A nation-wide project to protect critical systems and boost cyber resilience through cooperation and public awareness.
- **Cybersecurity Capacity-Building Programs** - DICT and train IT professionals in ethical hacking and forensics, building a skilled cyber defense workforce.
- **Digital Jobs PH / Tech4ED Centers** - Community programs that provide ICT training and digital literacy, empowering citizens—especially in rural areas—to join the digital economy safely.

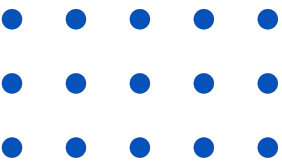




Relevance to IT

- **Cybersecurity Tools & Infrastructure** - IT experts secure data with firewalls, encryption, and monitoring to protect digital platforms.
- **Digital Forensics** - Specialists trace attacks, recover data, and provide evidence for cybercrime cases.
- **E-Governance** - IT ensures online government services are secure, reliable, and trusted.
- **Awareness Campaigns** - Professionals run trainings and apps to teach safe online practices.





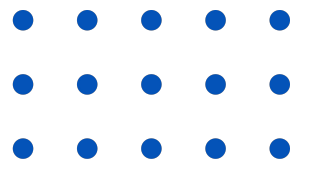
Key Takeaways

- Cybersecurity is both an economic need and a legal duty under the PDP.
- Updated laws and stronger law enforcement are needed to fight new threats.
- Public awareness protects citizens and ensures no one is left behind.
- Global cooperation is vital against cross-border cybercrime.

Recommendations

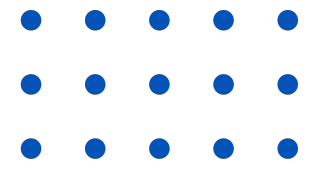
- Expand cybersecurity education and workforce training.
- Keep cyber laws updated and adaptive.
- Invest in secure digital infrastructure.
- Build a safe, inclusive, and resilient digital economy.

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Quiz Time!

TRUE OR FALSE

1. Filipinos spend an average of 8 hours and 52 minutes online every day
2. SDG 3 is: Sustainable Development Goal 3: Good Health and Well-Being
3. Cybercrime refers to unlawful acts committed using computers, networks, or the internet.
4. Cybersex means Exploiting computer systems to facilitate sexual acts for profit.
5. Child Pornography means Producing, distributing, or accessing explicit materials involving minors.

Quiz Time!

TRUE OR FALSE

6. The National Cybersecurity Plan 2022 is a roadmap to protect the Philippines' digital systems.
7. Cybersecurity capacity-building programs train IT professionals in ethical hacking and digital forensics.
8. Public awareness is an important part of keeping citizens safe in cyberspace.
9. A safe and secure digital economy is essential for national growth and trust online.
10. Cybersecurity has nothing to do with protecting banking or government data.



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Thank You!

For your attention to this presentation.